

1 **SENATE FLOOR VERSION**

2 February 24, 2025

3 **AS AMENDED**

4 SENATE BILL NO. 806

By: Pugh of the Senate

and

Moore of the House

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8 **[nutrition services - financial incentive - federal**
9 **approval - covered services - technical assistance -**
10 **noncodification - codification - effective date -**
11 **emergency]**

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law not to be
14 codified in the Oklahoma Statutes reads as follows:

15 This act shall be known and may be cited as the "Food is
16 Medicine Act".

17 SECTION 2. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 4002.14a of Title 56, unless
19 there is created a duplication in numbering, reads as follows:

20 Subject to receipt of any necessary federal approval for the
21 Food is Medicine Initiative under Section 3 of this act, the
22 Oklahoma Health Care Authority shall implement a financial incentive
23 for contracted entities who improve health outcomes of covered
24 members through nutrition services provided under the initiative.

SECTION 3. NEW LAW

A new section of law to be codified in the Oklahoma Statutes as Section 5009.7 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Health Care Authority shall seek any necessary federal approval to expand covered nutrition services under the state Medicaid program for the purpose of implementing a Food is Medicine Initiative.

B. The Food is Medicine Initiative shall be designed to improve health outcomes for Medicaid members through nutrition services and reduce the need for medical care.

C. Nutrition services covered under the Food is Medicine Initiative may include, but are not limited to:

1. Case management;
2. Nutrition counseling;
3. Meals or pantry stocking;
4. Nutrition prescriptions; and
5. Grocery provisions.

SECTION 4. NEW LAW

A new section of law to be codified in the Oklahoma Statutes as Section 5-147.2 of Title 70, unless there is created a duplication in numbering, reads as follows:

The State Department of Education shall provide, to schools who apply for grants under the Oklahoma Farm to School Program Act codified at Section 5-60.1 et seq. of Title 2 of the Oklahoma Statutes, technical assistance with applying for grants and

1 administering programs that expand student access to fresh, healthy
2 food.

3 SECTION 5. This act shall become effective July 1, 2025.

4 SECTION 6. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
9 February 24, 2025 - DO PASS AS AMENDED
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